

Harnandan v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 23 November 2023 · 2023:AHC:222431-DB · Writ - C No. 36811 of 2023 · **Writ disposed; Clause 6.5 representation in two months; recovery in abeyance.**

HEADNOTE

Harnandan disputed an electricity demand of Rs. 6,04,308 as erroneous billing after a disconnection notice for arrears of Rs. 60,992 and a deposit of Rs. 30,000. The Division Bench did not decide the bill. It disposed of the writ by directing that a representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005, if filed, be decided within two months, and that recovery remain in abeyance for two months or until that decision, whichever is earlier.

FACTUAL SUMMARY

Harnandan petitioned the Allahabad High Court, saying he had kept depositing electricity consumption charges yet the Department raised an inflated bill. A disconnection notice received on 20 December 2022 showed arrears of Rs. 60,992. He deposited Rs. 30,000 on 23 May 2023. A demand notice dated 28 March 2023 still claimed Rs. 6,04,308. He said that figure could not stand after the earlier arrears and the part payment, and that the billing was erroneous.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Disputed electricity bill relegated to a Clause 6.5 representation

HOLDING

On the licensee's statement that an approach under Clause 6.5 of the U.P. Electricity Supply Code, 2005 would be decided in accordance with law, the writ was disposed of with a direction that if the consumer files a representation under that clause, it shall be decided within two months, and that recovery shall remain in abeyance for two months or until the representation is decided, whichever is earlier. ¶ 1-2

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench disposed of the Article 226 petition without examining the bill, on the footing that the consumer may file a representation under Clause 6.5 and that the Electricity Department will decide it in accordance with law within two months. ¶ 1-2

clause-6.5-statutory-remedy-disputed-bill The dispute over the Rs. 6,04,308 demand, set against a disconnection notice for Rs. 60,992 and a later deposit of Rs. 30,000, was left to the statutory representation under Clause 6.5. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS. 6,04,308 AND THE DEPARTMENT'S BILLING WERE ERRONEOUS

Left to a Clause 6.5 representation, if filed, to be decided in accordance with law. ¶ 1-2